Marshall & Dominguez LLP

Pearland, TX
Phone 281-555-1704

Settlement Demand

September 26, 2024

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1236 - Demand for settlement

Dear Claims Representative:

I am writing on behalf of our client, Richard Smith, regarding the motor vehicle collision that occurred on February 23, 2024. Our client was traveling in the right-hand lane when the insured vehicle changed lanes without adequate clearance and sideswiped the driver's side of our client's car. The force of the impact pushed our client's vehicle against the guardrail and caused significant damage to the driver's door, quarter panel, and mirror.

Our client was taken from the scene and subsequently diagnosed with cervical and lumbar strain. The physicians who treated our client documented restricted range of motion in the neck, persistent muscle spasm in the lower back, and headaches that have interfered with work and daily activities. Physical therapy is ongoing, and our client's treating doctors anticipate several more months of care.

Liability in this matter is clear. The insured driver failed to check blind spots and yield before changing lanes, which is a plain violation of the applicable traffic statute. Responsibility for the resulting harm rests with your insured.

On behalf of our client, we demand payment of $32,000.00 to resolve all bodily injury and property damage claims arising from this collision. This demand will remain open for thirty days from the date of this letter. If we do not receive a satisfactory response within that period, we will file suit without further notice.

Expert review: Katherine Moore, accident reconstructionist

Sincerely,

Kyle Sanders
Marshall & Dominguez LLP